

Therefore, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant's motion to compel arbitration is granted. The action shall be stayed, pending completion of arbitration.

The court vacates pending dates, including the trial scheduled for September 2, 2026, and schedules this matter for an Order to Show Cause hearing regarding the status of arbitration on **March 9, 2027, at 9:00 a.m. in Department 32.**

3. S-CV-0044551 Duncan, Royce D al v. Mason, Thomas A

This tentative ruling is issued by the Honorable Todd D. Irby.

Final Accounting

Appearance of the parties is required on **July 14, 2026 at 8:30 a.m. in Department 33.**

4. S-CV-0049842 Garcia, Fernando v. Hospitality Team Members

Defendant's Motion to Compel Further Responses to Special Interrogatories, Set One

Defendant moves to compel further responses to special interrogatories, set one, nos. 11, 16, and 22.

Special interrogatory no. 11 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant meal break. Special interrogatory no. 16 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant rest break. Special interrogatory no. 22 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant wage statement.

In response to each of the subject interrogatories, plaintiff references Code of Civil Procedure section 2030.230, and refers to the complaint, the PAGA letter to the LWDA, defendant's business records, payroll and time records, wage statements, and defendant's policies and procedures.

Code of Civil Procedure section 2030.230 applies where responding to the interrogatory would necessitate making a compilation or summary of information, no such compilation presently exists, and the burden or expense of preparing or making the compilation would be substantially the same for the interrogating party as for the responding party. A response which references this statute must describe the records with sufficient particularity. (*Fuss v. Superior Court* (1969) 273 Cal.App.2d 807, 815-817.) Plaintiff's reference to Code of Civil Procedure section 2030.230 is not supported, and the response does not sufficiently describe the records.

Plaintiff's responses to the subject interrogatories are otherwise non-responsive.

Defendant's motion to compel further responses to special interrogatories, set one, nos. 11, 16, and 22 is granted. Plaintiff shall serve further responses within 10 days of service of notice of entry of the court's order.

Defendant's request for sanctions is denied as the notice of motion fails to identify every person, party, and/or attorney against whom the sanction is sought. Code Civ. Proc. § 2023.040. Plaintiff's request for sanctions is likewise denied.

Defendant's Motion to Compel Further Responses to Requests for Production of Documents, Set One

Defendant moves to compel further responses and production of documents as to requests for production, set one, nos. 11, 16-18, and 29-32.

Defendant's motion to compel further responses is denied as to request nos. 11, 16 and 29. Plaintiff's responses sufficiently comply with the requirements of the Code of Civil Procedure.

Defendant's motion to compel further responses is granted as to request nos. 17, 18, 30, 31, and 32.

Responses to a request for production must include an agreement to comply, a representation of responding party's inability to comply, and/or objections to all or part of the demand. (Code Civ. Proc. § 2031.210.(a).) An agreement to comply must state that the production will be allowed in whole or in part, and that responsive documents in the responding party's possession, custody or control will be produced. (Code Civ. Proc. § 2031.220.) A response stating an inability to comply must state that a diligent and reasonable inquiry has been made in an effort to locate the requested documents, and the reason that the responding party is unable to comply. (Code Civ. Proc. § 2032.230.) To state an objection, the responding party must set forth the specific ground for the objection, and identify with particularity the specific document demanded as to which the objection is made. (Code Civ. Proc. § 2031.240(b).)

In response to request nos. 17, 30, and 31, plaintiff limits his response to cellular phone bills, and does not make clear whether all responsive documents will be produced, or whether any responsive documents will not be produced based on inability. The response to request no. 18 is also limited to cellular phone bills, despite the request seeking bank records. The response to request no. 32 also does not make clear whether all responsive documents will be produced, or whether any responsive documents will not be produced based on inability.

Defendant's motion to compel further responses to requests for production, set one, nos. 17, 18, 30, 31, and 32 is granted. Plaintiff shall serve further responses within 10 days of service of notice of entry of the court's order. Plaintiff shall serve responsive documents within 20 days of service of notice of entry of the court's order.

Defendant's request for sanctions is denied as the notice of motion fails to identify every person, party, and/or attorney against whom the sanction is sought. Code Civ. Proc. § 2023.040. Plaintiff's request for sanctions is likewise denied.

5. S-CV-0050791 Conrad, Ethan v. Gill, Manpreet

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion for Attorneys' Fees and to Fix Prejudgment Interest

Plaintiff moves for an award of attorneys' fees against defendants in the amount of \$16,290 and for an order fixing prejudgment interest at \$31,379.42. Defendants oppose the motion.

Defendants' objections to portions of the declaration of counsel Young are overruled.

The threshold question is whether plaintiff is entitled to recover fees. This action is based on a written commercial lease agreement between the parties' predecessors in interest dated November 5, 2005 which includes an attorneys' fees provision:

22. ATTORNEY'S FEES. In case suit shall be brought for any breach of this Lease including without limitation unlawful detainer of the premises or for the recovery of any rent due under the provisions of this Lease, or because of the breach of any covenant herein contained on the part of Lessee to be kept or performed, the prevailing party shall be entitled to a reasonable attorney's fee which shall be fixed by the Court, or in any compromise or settlement such attorney's fee shall be deemed to have accrued on the commencement of such action and shall be paid whether or not

(Pltf's Exh. 2, ¶ 22.)

Plaintiff moved for summary judgment, which the court granted on December 8, 2025. (Ruling on submitted matter, Dec. 8, 2025.) On July 8, 2026, the court entered judgment for plaintiff as against defendant. Plaintiff is the prevailing party in this action. A prevailing party in an action on contract is entitled to recover reasonable attorneys' fees where the contract provides for their recovery. (Civ. Code, § 1717, subd. (a).) Plaintiff is therefore entitled to recover reasonable attorneys' fees.

The court must next address whether the \$16,290 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Kenrick Young. Counsel declares he has charged an hourly rate of \$220 to \$300 during the pendency of this case. However, a review of Exhibit 3 to the declaration of counsel Young reveals other attorneys who worked on the case—Dirk Chilcote and Nicholas Lazzarini, who have